

23STCV27800 23STCV27800

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Case Number: 23STCV27800 Hearing Date: July 7, 2026 Dept: 731

Mainak D'Attaray ("Counsel"), counsel for Defendants Jaime Ortega ("Ortega"), Matthew Feinstein ("Feinstein"), and Pineapple Ventures, Inc. ("Pineapple Ventures"), moves to be relieved as counsel.

Counsel's motions to be relieved as counsel are DENIED.

Background

On

November 13, 2023, Plaintiff Blue Fire, LLC ("Plaintiff") brought this action against Defendants Vincent Mehdizadeh, Ortega, Marco Rullo, Feinstein, Pineapple Ventures, PNPL Holdings, Inc., PNPLXPRESS X, Inc., Raking Leaves, Inc., Pineapple Consolidated, Inc., and Does 1 through 50, alleging causes of action for (1) fraud, (2) breach of contract, (3) unjust enrichment, (4) imposition of a constructive trust, (5) unfair business practices, (6) breach of fiduciary duty, and (7) theft under Penal Code section 466(c).

On

May 21, 2026, Counsel filed the instant motions to be relieved as counsel for Ortega, Feinstein, and Pineapple Ventures. No opposition has been filed.

On

May 28, 2026, Counsel filed notice of stay of proceedings (bankruptcy) as to Feinstein.

Legal Standard

An attorney in an action may be changed at any

time before or after judgment or final determination upon the order of the court, upon the application of either client or attorney, after notice from one to the other. (Code Civ. Proc., § 284(2).) California Rules of Court, rule 3.1362 requires:

1.

Notice of motion and

motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel Civil form (MC-051));¿

2.

A declaration stating in

general terms, and without compromising the confidentiality of the attorney client relationship, why a motion under Code of Civil Procedure section 284(2), is brought instead of filing a consent under CCP §284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel Civil form (MC-052));¿

3.

Service of the notice of

motion and motion and declaration on all other parties who have appeared in the case; and¿

4.

The proposed order

relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel Civil form (MC-053)).¿

The motion should be denied if withdrawal would

prejudice the client.¿ (Rules Prof. Conduct, Rule 3-700(A)(2); Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial, 9:385.2 (2008); 1 Witkin Cal. Pro., Attorneys §72 (2008).) The motion should be denied if it will cause undue delay in the proceeding or cause injustice.¿ (Mandell v. Superior Court (1977) 67 Cal.App.3d 1, 4.) The determination whether to grant or deny an attorney's motion to withdraw as counsel of record lies within the sound discretion of the trial court, having in mind whether such withdrawal might work an injustice in the handling of the case. (Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)¿ A breakdown in the attorney-client relationship (or personality clash) is grounds for withdrawal.¿ (Estate of Falco (1987) 188 Cal.App.3d 1004, 1014.)

Discussion

Here,

Counsel seeks to be relieved under Code of Civil Procedure section 284(2) because an actual conflict of interest has arisen between the multiple defendants represented by Counsel which cannot be waived or resolved, despite attempts, such that Counsel cannot continue to represent all defendants in this matter without breaching ethical duties. (MC-052, ¶ 2.)

However, Counsel failed to provide the Court with all required documents. Counsel filed the Judicial Council Form MC-051 (Notice of Motion and Motion) and MC-052 (Declaration) forms for each of the three motions to be relieved as counsel. However, Counsel did not file the MC-053 (Proposed Order) forms with the Court. Additionally, Counsel did not file proof of service on Ortega, Feinstein, and Pineapple Ventures. Therefore, Counsel fails to comply with the requirements of California Rules of Court, rule 3.1362 and the motions to be relieved as counsel are denied.

CONCLUSION

Counsel's motions to be relieved as counsel are DENIED.